

**The Punjab New
Mandi Township
(Dev. & Reg.)
Act, 1960**

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Colonization & Land Acquisition
PUNJAB, CHANDIGARH.

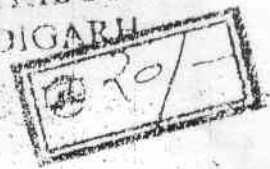
Punjab Act No. 2 of 1960

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The Punjab New Mandi Townships (Development and Regulation) Act, 1960

(Punjab Act No. 2 of 1960)

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[Received the assent of the Governor of Punjab on the 5th January, 1960 and was first published for general information in the Punjab Government Gazette (Extraordinary) dated the 8th January, 1960.]

LEGISLATIVE AMENDMENT

—Amended by Punjab Act 16 of 1981.

An Act to provide for the development and regulation of New Mandi Townships in Punjab

Be it enacted by the Legislature of the State of Punjab in the Tenth year of the Republic of India as follows :—

NOTES

1. **Statement of objects and reasons.** — [As a result of increased agricultural facilities from the newly constructed Bhakra Canals and expectation of additional production of agricultural commodities, it is proposed to establish several market towns at convenient centres for the sales of surplus agricultural produce and for the establishment of ancillary industries. It is further proposed to design and develop these Mandis as Model Towns where people can live and carry on their business in pleasant and healthy surroundings free from congestion and squalor. To some extent the development of these towns will be on the lines of market towns of Colony District of West Pakistan, e.g. Arifwala, Burewala, Vihari, Khanewal (Multan), Mandi-Bahau-din (Gujrat), Phullarwan, Bhalwal and Sillanywali (Sargodha), but profiting by the experience of these towns it is proposed to avoid their defects and drawbacks.]

The Bhakra Dam and its canals have already come to be regarded as a model of Engineering skill. It is hoped that the Mandis based on them will also become outstanding examples of a better way of life, among the people. This Bill is designed to provide the requisite power for the proper planning, regulation and development of these towns as model habitations.]

2. **Interpretation.** — Interpretation and construction of legal provisions is the process by which the courts seek to ascertain the meaning of the legislature through the medium of the authoritative forms in which it is expressed. The terms interpretation and construction have often been used as identical but the two differ from each other in the sense that interpretation is the art of finding out the true sense of the words used by the authors whereas construction is drawing conclusions from words which are not clear. See *Cooley Constitutional Limitation*, 197. The fundamental rule of construction is to find out the intention expressed in the rule and to give natural meaning to the words used. *Jugal v. Raw Cotton Co.*, AIR 1955 SC 376.

A *casus ommissus* cannot be supplied by the court except in the case of clear necessity and when reason for it is found in the four corners of the statute itself. *L. P. Commissioner v. National Toy Traders*, AIR 1980 SC 483.

¹For Statement of Objects and Reasons, see, Punjab Government Gazette, 1958, Page 1472-73.

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An interpretation which would lead to manifest absurdity, palpable injustice or absurd inconvenience or anomaly should be avoided. This view was expressed in *American Home Products Corp. v. Mac Laboratories (P) Ltd.*, AIR 1986 S. C. 137.

Harmonious construction is possible when such construction promotes the objects of the Act and would be in the national interest. *Commr. Wealth v. Yuvraj Amrinder Singh*, AIR 1986 S. C. 959.

Statutes which are enacted in the national interest should be interpreted which may advance the cause. An interpretation should be placed which should not permit the non residents companies to purchase shares and transfer them abroad. *I. I. C. India Ltd. v. Escorts Ltd.*, AIR 1986 S. C. 1370.

The court must so interpret the statute as to promote the objects and purpose of the enactment. The primary and foremost task of a court in interpreting a statute is to ascertain the intention of the legislature, actual or imputed. Having ascertained the intention the court must then strive to interpret the statute as to promote and advance the objects and purpose of the enactment. *M/s. Gurdial Lal & Sons v. Balbir Nath*, AIR 1986 SC. 1499.

The intention has to be judged from the wordings used in the statute. *Sunita v. State of Maharashtra*, AIR 1986 SC. 1552.

Where words of a statute are clear there is no question of interpretation. Grammatical construction has always been accepted as a golden rule. *Raghunath Saran v. Pyare Lal Workshop (P) Ltd.*, AIR 1986 SC. 1682.

In order to interpret a particular provision and to infer intention of legislature the objects and reasons stated in bill when it is presented to legislature can be relied upon. *Ribs Tapes India (P) Ltd. v. UOI*, AIR 1986 SC. 2015.

3. **Power of court to give retrospectivity.** It is open to the court to give retrospectivity to a legislation to which the legislature plainly and expressly refuse to give retrospectivity. In case this is not done i. e. refusal to make an Act retrospective or the non application of the Act with reference to a date or to an event that took place before the enactment made by itself create an impermissible classification justifying the striking down of the non retroactivity. *B. Prabhakar Rao v. State of A. P.*, AIR 1986 SC. 210.

4. **Social welfare legislation and liberal interpretation.** - Where an Act is a beneficent piece of social welfare legislation aimed at promoting and securing the well being of the employees, the Court will not adopt a narrow interpretation which will have the effect of the defeating the very objects and purposes of the Act. *APU v. Regional Provident Fund Commr.*, AIR 1986 SC. 463.

Where beneficial statutes are passed these should be implemented and where these were not being implemented the court can give a direction that these statutes should be implemented. *Sheela v. UOI*, AIR 1986 SC. 1773.

5. **Fiscal statutes.** The principle that fiscal statute should be strictly construed does not rule out the applicability of the principles of reasonable construction to give effect to the purpose or intention of any particular

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provision as apparent from the scheme of the Act with the assistance of such external aid as is admissible under the law. *Shree Sajjan Mills v. IT Commr.*, AIR 1986 SC, 485.

6. **Preamble.**—The cardinal rule of interpretation is to look to the preamble as the guiding light. The preamble embodies and expresses the hopes and aspirations of the people. When it is the task of examining the statutes against the construction it is through these glasses that the court must look. The Constitution being *sui-generis*, where constitutional issues are under consideration, narrow interpreted rules which may have relevance when legislative enactments are concerned may be misplaced. *Atam Parkash v. State of Haryana*, AIR 1986 SC 859.

7. **Implied repeal.**—An implied repeal of an earlier law can be referred only where there is the enactment of a later law which had the power to over-ride the earlier law and is totally inconsistent with the earlier law i. e. where the two laws, the earlier and the latter law cannot stand together. This is a logical necessity because the two inconsistent laws cannot both be valid without contravening the principle of contradiction. The later laws abrogate earlier contrary laws. *Om Parkash v. Shukla*, AIR 1986 SC, 1043.

8. **Legislative history and practice.**—While determining the constitutional validity of a statute it is permissible to take into consideration the legislative history. *D. K. Trevedi & Sons v. State of Gujarat*, AIR 1986 SC, 1323. In this regard see also *State of Bombay v. Narotam Dass*, AIR 1951 SC, 69 and *State of Mad v. Gannan Dukanlay & Co.*, AIR 1958 SC 561 where in it was observed that to take into account legislative history and practice while considering the validity of the statutory provisions, while interpreting a legislative entry it is a well established principle of construction of statutes.

9. **Intention of legislature.**—If a particular interpretation would frustrate the intention of the legislature then it should be avoided. A statute cannot be construed merely with reference of grammar. Statute whenever the language permits must be construed reasonably, and rationally to give effect to the intention and purposes of legislature. *M. Satna Nrain v. State of Karnataka*, AIR 1986 SC, 1182. See also *Ishwar Singh v. State of UP*, AIR 1968 SC, 1450.

10. **Legislation furthering Directive Principles.**—A legislation which furthers the principles contained in Directive Principles of State Policy should be so interpreted so as to avoid a doctrinaire or pendentic approach. It is a well known rule of construction that in dealing with such a beneficial piece of legislation the court ought to adopt a construction which would subserve and carry out the purpose and objects of the Act, rather than defeat it. *National Textile Corpn. v. Sita Ram Mills*, AIR 1986 SC, 1234.

11. **Notification.**—A notification has no statutory force. It cannot over-ride rules having statutory force. *Union of India v. Arun Kumar* AIR 1986 SC, 737.

SECTIONS 1-7

1. **Short title, extent and commencement.**—(1) This Act may be called the Punjab New Mandi Townships (Development and Regulation) Act, 1960.

(2) It extends to the whole of the State of Punjab.

(3) It shall come into force at once.

2. *Definitions.*—In this Act, unless the context otherwise requires,—

(a) "Administrator" means any person designated by the State Government by notification in the official gazette for performing the functions of an Administrator under this Act ;

(b) "amenity" includes roads, water-supply, street lighting drainage, sewerage, cattle-sheds, warehouses, public lavatories, bath rooms, Public buildings, horticulture, landscaping and any other public utility as may be prescribed ;

(c) "building" means any construction or part of a construction which is intended to be used for residential, commercial, industrial or other purposes, whether in actual use or not and includes any out-house, structure, stable, cattle shed, garage, hut, platform and plinth ;

(d) "Commissioner" will have the meaning assigned to him in the Colonization of Government Lands (Punjab) Act, 1912 ;

(e) "erect or re-erect any building" includes—

(i) any material alteration or enlargement of any building,

(ii) the conversion by structural alteration into a place for human habitation of any building not originally constructed for human habitation,

(iii) the conversion into more than one place for human habitation of a building originally constructed as one such place,

(iv) the conversion of two or more places of human habitation into a greater number of such places,

(v) such alterations of a building as affect an alteration of its drainage or sanitary arrangements, or materially affect its security,

(vi) the addition of any rooms, buildings, outhouses or other structures to any building,

(vii) the construction in a wall adjoining any street or land not belonging to the owner of the wall, of a door opening on to such street or land, and

(viii) the construction of any overhanging structure over any street or Public place or the enclosing of any space intended to be kept open ;

(f) "new mandi township" means any area declared to be new mandi township by the State Government under sub-section (1) of section 3 ;

(g) "occupier" means a person, including a firm or other body of individuals, whether incorporated or not, who occupies a site or building transferred under this Act, and includes his successors and assigns ;

(h) "prescribed" means prescribed by rules made under this Act ;

(i) "site" means any land which is transferred by the State Government under section 3 ;

(j) "transferee" means a person (including a firm or other body of individuals, whether incorporated or not) to whom a site or building is sold, leased or transferred in any manner whatsoever under this Act, and includes his successors and assigns.

COMMENTARY

1. **Building.**—Decisions show that ordinary meaning of building is a walled super structure with a roof, but in some cases wooden super structure with a roof has also been held to be a building. A vacant site enclosed on three side by walls of houses and on the fourth by a kacha wall which had fallen down cannot be held to be a building. *Jandu Ram v. Shadhu*, AIR 1953 Punjab 109.

Building has been the subject-matter of certain decisions. In *Moir v. Williams* (1882) 1 QB 264 at page 270 Lord Esher M. R. observed as follows :-

"If the words 'new building' are taken by themselves without reference to the other part of the Act they would be taken to apply, to what is ordinarily called a building. Such an ordinary building is an enclosure of brick or stone work covered by a roof."

In *Wai's Executors v. Commissioner of Land Revenue*, (1914) 3 KB 196, an embankment was held not to be a building or structure within the meaning of the Act of Parliament which was there in dispute. No doubt in this case Swinfen Eady L. J. did say that the construction placed upon the meaning of the word 'building' in *Moir v. Williams*, (1882) 1 QB 264, was too narrow, but the learned Lord Justice was there referring to the observations of Collier M. R. in *Long Eaton Recreation Grounds Co. v. Mullan Ry. Co.*, (1882) 2 KB 574 at page 581 and he observed.

"Cottages built of wood would certainly be included as buildings so also would the barn and stables of a farm though built only of wood and thatched with straw. But wherever the line defining 'buildings' is to be drawn I am of the opinion that embankment must be outside it"

Coming now to cases in India in *Baladin v. Lakhan Singh*, AIR 1927 All 214, Iqbal Ahmed J., accepted the observations of Lord Esher M. R. in *Moir v. Williams*, (1882) 1 QB 264.

In *Thanklul v. Secretary Municipal Committee, Khandwa*, 64 IC 274 (Nag), the Nagpur Judicial Commissioner defined the word 'building' as meaning structure with a roof. The learned Judicial Commissioner followed the definition as given by Lord Esher M. R., in the case *Moir v. Williams* (1882) 1 QB 264.

In *Pendit Yog Raj v. R.D. Jain*, RSA 899 of 1948 dated the 15th December 1950 it was held that vacant site is not a building.

A court yard enclosed by low walls on three sides only is not a building. AIR 1927 All 214.

The erection of a mere fence or an ordinary wall is not a building. But where such a wall is built so as to enable the occupier of the main house to use the enclosed area as a part of his habitation and not merely as a boundary or fence, it may fall within the definition of building. AIR 1928 Rangoon 65.

A gas main under a public street may fall within the definition of building. *Montreal Light and Heat and Power Co's case*, AIR 1923 FC 165.

Building is a structure permanently fixed to the land and is immovable property. *Muni Lal v. Kishore Chand*, AIR 1927 Lah. 133.

Any super structure which is intended for the use and occupation for purposes of trade, manufacture or of commerce, or some other structure constituting a fabric or edifice will be deemed to be a building. *Chaddramani v. Collector*, AIR 1959 AP 869.

A railway carriage or a brake van is not a building. 10 PR 187.

An unroofed yehra with a small gate locked adjoining the occupied room is a building. AIR 1926 Lah. 23.

Walls of a room erected on roof of a single storied building upto lintel is a building. 1965 BLR 520.

A wall is included in the term building because the definition does not say that the wall should necessarily be detached from the building or should stand by itself. A wall will therefore, fall within the definition of building whether it forms part of the house or not. *Municipal Committee v. Sham Dei*, AIR 1947 Lah. 256.

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A wooden shed of the dimensions 10'x18' and which is roofed by tin sheets would fall within the definition of building though it is mounted on wheels and it is permitted to move from one part of the site on which it stood to another. Such a place when used for sleeping purposes at night would fall within the term building. *Nandu Mal v. Municipal Committee*, AIR 1925 Lah. 252.

A cow shed is also a building. *Marata Rao v. MC Nagpur*, AIR 1926 Nagpur 281.

A small wooden almirah would not fall within the definition of the term building. It was observed that the expression building includes any shop but carrying on of trade is not decisive of every place of building being a building or not. Whether a particular place is covered by the definition of term building or not would depend on the nature of the business carried on therein. Under the circumstances it was held that almirah would not constitute a building. *Hira Lal v. Municipal Committee*, 1967 (69) PLR 74 (Delhi).

In *Emperor v. Hassan Bhai*, AIR 1924 Bombay 94 a wire fence 6 feet in height and consisting of wooden plank attached to posts embedded in earth on the boundary of the property was held not to be a building. A space enclosed by canvass is outside the scope of definition of building. *Kanta Nath v. Municipal Board of Allahabad*, 28 All. 199.

Each house has to be taken as a separate building. Tax has to be levied accordingly. *Bhakra Beas Management Board v. State of Punjab*, 1986 Punjab Legal Reports and Statutes 686.

2. **Compound wall.**—A compound wall constructed on a ground which is to be the compound of a projected building amounts to a part of building. *Improvement Trust of Varanasi v. Dr. M. A. Numairi*, 1979 All. LJ 897. However in *Lalit Narain v. State*, 1957 All. LJ 711, it was held that a compound wall which is entirely detached from a house is not a building or part of a building.

A compound wall comes within the definition of the term building. *Emperor v. Prabhu*, 63 Indian Cases 158.

Compound wall is a building. — While interpreting Madras District Municipalities Act, 1920 the compound wall of less than 8 feet abutting on a public road was held to be not a building and it was accordingly held that it could not be demolished if it was built without permission. *Vishakhapatnam Municipal Council v. Kamla Devi*, 1972 (1) And. WR 332.

SECTION 3

3. **Power of State Government to declare New Mandi Township and to transfer land and building therein.**—(1) The State Government may, from time to time, by notification in the official gazette, declare any area to be a new mandi township for the purposes of this Act to be known by such name as may be specified in the notification.

(2) [Subject to the provisions of this section], the State Government may sell, lease or otherwise transfer, by auction, allotment or otherwise, any land or building belonging to or vested in the State Government in any new mandi township on such terms and conditions as it may, subject to any rules that may be made under this Act, deem fit to impose.

See Punjab Act 16 of 1981.

(3) The consideration money for any transfer under sub-section (2) shall be paid to the State Government in such manner, in such instalments and at such rate of interest as may be prescribed.

(4) Notwithstanding anything contained in any other law for the time being in force, until the entire consideration money together with interest or any other amount, if any, due to the State Government on account of the transfer of any site or building, or both, under sub-section (2) is paid, such site or building, or both, as the case may be, shall continue to belong to the State Government].

4. *Bar to erection or alteration of buildings in contravention of building rules.*—(1) No person shall erect or re-erect or occupy wholly or partly any building or use or develop any site, or building in contravention of any rules made under sub-section (2) and without the previous permission in writing of the Administrator.

(2) The State Government shall, by notification in the official gazette, make rules to regulate the erection or re-erection of buildings and use of sites, and such rules may provide for all or any of the following matters :—

(a) notice to build and procedure for submission of building applications with building and site plans ;

(b) use of site and the type and character of building and the number of self-contained units that may be erected on any site ;

(c) extent of site coverage and space about buildings and the prescription of a building line ;

(d) the minimum dimensions and superficial area required for various parts of the building designed for different purposes and the minimum provision of doors and windows for securing ventilation and circulation of air ;

(e) the maximum height of any building and the total number and height of storeys in a building ;

(f) the means to be provided for ingress and egress to any building for prevention of fire ;

(g) the extent of architectural control on the various units of the building and the portions of such architectural units, including compulsory building line along which, and compulsory height up to which, building shall be completed within a specified and reasonable time ;

(h) the specification of materials and dimensions for any building to ensure structural stability ;

(i) the materials and methods of construction for drains and sewers and for the provision and use of connection between private and public drains and sewers, and the procedure for submission of plans ;

(j) Supervisors and Architects for design and erection of any buildings and the qualifications which such persons shall possess ;

(k) notice and certificate of completion of buildings or parts thereof ;

(l) any other matters for the proper use and development of sites and the use, alteration and erection of buildings thereon.

5. *Administrator's powers to sanction or refuse erection of buildings and presumption of sanction.*—(1) The Administrator shall refuse to sanction

¹See Punjab Act 16 of 1981

the erection of any building in contravention of any rules made under sub-section (2) of section 4.

(2) The Administrator shall in every case, communicate the sanction or rejection of a building application within sixty days of its receipt.

(3) Where no communication is received by the applicant from the Administrator within the period specified in sub-section (2), the application shall be deemed to have been sanctioned and the applicant may, after giving fifteen days notice to the Administrator, erect or re-erect the building in accordance with the building application submitted by him to the Administrator for sanction notwithstanding that such erection or re-erection contravenes the rules made under section 4 :

Provided that when the Administrator modifies the building application within such fifteen days and communicates the modification to the applicant the applicant shall erect or re-erect the building in accordance with such modification

6. *Power of Administrator to stop unauthorised building operations and penalty for breach and disobedience.*—Where the erection or re-erection of a building has been commenced without sanction or is being carried on as such or in contravention of the terms of any sanction, the Administrator may, by a notice to be served on the owner, or by affixing it at the site or on the building, direct that the building operations be discontinued.

7. *Power of Administrator to direct modification of sanctioned plan of a building before its completion.*—If at any time before the completion of a building of which the erection or re-erection has been sanctioned under section 5, the Administrator finds that any modification of the sanctioned plan is necessary, he may direct that the building be modified accordingly, subject to payment of compensation by the State Government for any loss incurred by the owner on account of such modification.

8. *Lapse of sanction after one year from the date of such sanction.*—Every sanction for erection or re-erection of any building given or deemed to have been given shall be valid for one year from the date of such sanction or for such longer period as the Administrator may allow :

Provided that the erection or re-erection of the building not commenced within one year, and completed within two years or such longer period as may have been allowed, the sanction shall be deemed to have lapsed, but such lapse shall not bar any subsequent application for fresh sanction.

9. *Power to require proper maintenance of site or building.*—If it appears to the Administrator that the condition or use of any site or building is prejudicially affecting the proper planning of any part of the new mandi township, or its amenities, or the health or interests of the general public, he may serve on the transferee or occupier of the site or building notice requiring him to take such steps and within such period as may be specified in the notice and thereafter to maintain it in such a manner as may be specified therein.

10. *Levy of fees for amenities.*—For the purpose of providing maintaining or continuing any amenity in the new mandi township, the State Government may levy such fees as it may consider necessary in respect of any site or building on the transferee or occupier thereof.

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Imposition of penalty and mode of recovery of arrears.—(1) Where any transferee makes any default in the payment of any rent due in respect of any lease of any site or building, or both, as the case may be, under section 3, or where any transferee or occupier makes any default in the payment of any fee levied under section 10, the Administrator may direct that in addition to the amount of arrears, a sum not exceeding that amount shall be recovered from the transferee or occupier, as the case may be, by way of penalty.

Provided that no such direction shall be made unless the person affected thereby has been given a reasonable opportunity of being heard in the matter.

(2) Where any person makes any default in the payment of any amount, being the arrears and penalty directed to be paid under sub-section (1), such amount may be recovered from the transferee or occupier, as the case may be, in the same manner as an arrear of land revenue].

12. "[—]

[13 Imposition of penalty for failure to pay consideration money and resumption and forfeiture in certain cases.—(1) If any transferee fails to pay the consideration money or any instalment thereof on account of sale of any site or building, or both, under section 3, the Administrator may, by notice in writing, call upon the transferee to show cause within a period of thirty days, why a penalty (which shall not exceed ten per centum of the amount due from the transferee) be not imposed upon him.

(2) After considering the cause, if any, shown by the transferee and after giving him a reasonable opportunity of being heard in the matter, the Administrator may, for reasons to be recorded in writing, make an order imposing the penalty and direct that the amount due along with the penalty shall be paid by the transferee within such period as may be specified in the order.

(3) If the transferee fails to pay the amount due along with the penalty, in accordance with the order made under sub-section (2), or commits a breach of any other condition of sale, the Administrator may, by notice in writing, call upon the transferee to show cause within a period of thirty days, why an order of resumption of the site or building, or both, as the case may be, and forfeiture of the whole or any part of the money, if any, paid in respect thereof (which in no case shall exceed ten per centum of the total amount of the consideration money, interest and other dues payable in respect of the sale of the site or building, or both) should not be made.

(4) After considering the cause, if any, shown by the transferee in pursuance of a notice under sub-section (3) and any evidence that he may produce in support of the same and after giving him a reasonable opportunity of being heard in the matter, the Administrator may, for reasons to be recorded in writing, make an order resuming the site or building or both, as the case may be, so sold and directing the forfeiture as provided in sub-section (3) of the whole or any part of the money paid in respect of such sale.

14. Penalty for breach of the provisions of the Act or rules thereunder.—Except as otherwise provided in this Act, any contravention of the provisions of this Act or the rules made thereunder shall be punishable with which may extend to five hundred rupees and, in the case of continuing

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contravention, with an additional fine which may extend to fifty rupees for each day during which such contravention continues after the first conviction.

(2) If a building is begun, erected or re-erected in contravention of any of the rules made under sub-section (2) of section 4, the Administrator shall be competent to order the building to be altered or demolished by a written notice served on the owner thereof within six months of such commencement, erection or re-erection. Such notice shall also specify the period not being less than fifteen days during which such alteration or demolition must be made and, if the notice is not complied with, the Administrator shall be competent to demolish the said building at the expense of the owner :

Provided that the Administrator may, instead of requiring the alteration or demolition of any such building, accept by way of composition such sum as he may deem reasonable.

15. *Appeal and revision.*—(1) Any person aggrieved by an order of the Administrator under [sections 5, 8, 9, 11, 13] or sub-section (2) of section 14 may, within thirty days from the date of communication to him of such order, prefer an appeal to the Commissioner of the Division in which the new mandi township is situated :

Provided that the Commissioner may entertain an appeal after the expiry of the said period of thirty days if he is satisfied that the appellant was prevented by sufficient cause from filing the appeal in time :

Provided further that the provisions relating to the deduction of period spent in obtaining copies of orders contained in the Indian Limitation Act, 1908, shall apply in computing the period of limitation.

(2) The Commissioner may, after hearing the appeal, confirm, vary or reverse the order appealed against and may pass such orders, as he may deem fit.

(3) The Financial Commissioner may, either on his own motion or on an application received in this behalf at any time, within a period of [six months] from the date of the order, call for the records of any proceedings in which the Administrator or Commissioner has passed an order for the purpose of satisfying himself as to the legality or propriety of such order and may pass such orders in relation thereto as he thinks fit :

Provided that the Financial Commissioner shall not pass an order under this sub-section prejudicial to any person without giving him a reasonable opportunity of being heard.

16. *Powers of entry on buildings or land.*—(1) The Administrator may, after giving four days' notice to the occupier, or if there be no occupier, to the owner of the building or land authorise any person—

(a) to enter on and to survey and to take levels or measurements of any building or land,

(b) to enter into any building or on any land to ascertain whether any building is being or has been erected without sanction or in contravention of any sanction or the rules made under this Act and to take such measurements as may be necessary for this purpose.

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(-) The entry contempt [redacted] (a) and (b) of sub-section (1) shall be between sunrise and sunset.

17. *Partial exclusion of jurisdiction of Municipal Committees, Panchayats and Town Improvement Trusts in new mandi townships.*—(1) If any new mandi township or a part thereof lies within the limits of a municipality, notified area, Gram Panchayat area or local area, under the Punjab Town Improvement Act, 1922, the State Government may, by notification in the official gazette, direct that any or all the powers under the Punjab Municipal Act, 1911, the Punjab Gram Panchayat Act, 1952, or the Punjab Town Improvement Act, 1922, as are relevant to the purposes of this Act, shall, subject to such conditions and restrictions as may be specified in the notification, cease to operate in such new mandi township or a part thereof, and the Municipal Committee, the President or any officer of the Committee, the Gram Panchayat or the Town Improvement Trust, as the case may be, shall thereafter cease to have jurisdiction over that new mandi township or a part thereof, as the case may be, in respect of such powers.

(2) The provisions of the Punjab Municipal Act, 1911, the Punjab Gram Panchayat Act, 1952, and the Punjab Town Improvement Act, 1922, in so far as they are inconsistent with the provisions of this Act shall not apply to a new mandi township or a part thereof.

18. *Procedure for prosecution.*—No court shall take cognizance of any offence under section 14 except on the complaint of, or upon information received by the Administrator or any other person authorised by him in this behalf.

19. *Bar of jurisdiction.*—No court shall have jurisdiction to entertain any suit or proceeding in respect of the recovery of any arrears or penalty under section 11 or in respect of the resumption of any site or building, or both, as the case may be, under section 13, or the forfeiture of any money under that section, or in respect of any order made by the State Government or any other authority in the exercise of any power conferred by or under this Act.

20. *Protection of action taken in good faith.* No suit, prosecution or other legal proceeding shall lie against the Administrator or any other officer or authority for any thing done or intended to be done in good faith in pursuance of this Act or rules or orders made thereunder.

21. *Delegation.*—(1) The State Government may, by order direct that any power exercisable by it or by the Administrator under this Act shall also be exercisable by such officer not below the rank of a Naib-Tahsildar and subject to such conditions, if any, as may be specified in the order.

~~Any officer not below the rank of a Naib-Tahsildar of the State Government may, by order, delegate all or any of his powers under this Act to any officer not below the rank of a Naib-Tahsildar of the State Government, subject to such conditions as may be specified in the order.~~

22. *Power to exclude application of Act to certain new mandi townships.*—If the State Government is of the opinion that it is not in public interest to develop a new mandi township it may, by notification, declare that the provisions of this Act shall cease to apply to such new mandi township from such date as may be specified in such notification.

See Punjab Act 16 of 1981.

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23. *Power to include fully developed new mandi townships within limits of local authorities*—If the State Government is of the opinion that any new mandi township has been fully developed in accordance with the provisions of this Act and the rules made thereunder, it may, by notification in the official gazette, include such new mandi township within the local limits of any local authority from such date as may be specified in the notification, and thereupon the provisions of this Act shall cease to apply to such new mandi township, and the provisions of the law for the time being in force relating to such local authority shall apply in relation thereto.

24. *Certain Sales to be deemed to be sales under this Act.*—(1) Every sale of land made to any person in a new mandi township in pursuance of the Punjab Government, Agriculture Department notification No. 359-D (M)-57/884, dated the 5th March, 1957, shall be deemed to have been made to such person under the provisions of this Act, and as from the commencement of this Act in such new mandi township, the provisions of the Colonisation of Government Lands (Punjab) Act, 1912, shall cease to apply to such sale of land and all the provisions of this Act and the rules or orders made thereunder shall apply accordingly in respect thereof:

Provided that such rules or orders shall not be inconsistent with the terms and conditions on which such sale has already been made.

(2) The sales of land made for establishing the new mandi township of Bhatinda in the month of June, 1956, and in the new mandi township of Shutrana in the months of July and August, 1956, shall be deemed to have been made under this Act and all the provisions of this Act and the rules or orders made thereunder shall apply accordingly to such sales:

Provided that such rules or orders shall not be inconsistent with the terms and conditions on which such sales have already been made.

25. *Power to make rules.*—The State Government may, by notification in the official Gazette, make rules prescribing all matters which by this Act are required or permitted to be prescribed, or which are necessary or convenient to be prescribed for carrying out or giving effect to this Act and in particular prescribing—

(a) the terms and conditions on which any land or building may be transferred by the State Government under this Act;

(b) the manner in which consideration money for transfer may be paid;

(c) the rate of interest payable and the procedure for payment of instalments, interest, fees, rents or others dues payable under this Act;

(d) the terms and conditions under which the transfer of any right in any site or building may be permitted;

(e) the levy of fees under section 10;

(f) the terms and conditions for the breach of which any site or building may be resumed;

(g) the form of notice and the manner in which notices may be served;

(h) the form and manner in which appeals and applications under this Act may be filed and the Court-fees leviable on such appeals and applications;

(i) any other matter which has to be or may be prescribed.

Note. Section 8 of Act 16 of 1981 which validates certain Act reads as under.

[8. *Validation.*—Notwithstanding any judgment, decree or order of any court, anything done or any action taken (including any notice issued, any order made for resumption of any site or building, or both, as the case may be, or any such resumption effected, or any order made for the forfeiture of any money or money forfeited, or any order made for the recovery of any arrears or any arrears recovered, or any penalty imposed or recovered) or purported to have been done or taken under the principal Act shall, in so far as it is consistent with the provisions of the principal Act, as amended by this Act, be deemed to be as valid and effective as if such thing or action was done or taken under the principal Act, as amended by this Act and accordingly no suit or other legal proceeding shall be maintained or continued in any court—

(i) for the recovery of any site or building, or both, as the case may be, which has or have been resumed ; or

(ii) for the cancellation of any order made for the resumption of any site or building, or both, as the case may be ; or

(iii) for the recovery of any money forfeited ; or

(iv) for the cancellation of any order made for the forfeiture of any money ; or

(v) for the refund of any arrears recovered ; or

(vi) for the cancellation of any order made for the recovery of any arrears ; or

(vii) for the refund of any penalty recovered ; or

(viii) for the cancellation of any order imposing any penalty.

9. *Saving.* The provisions of sub-section (3) of section 15 of the principal Act as amended by section 6 of this Act shall not apply to any proceedings in which the Administrator or Commissioner, as the case may be, has passed an order before the commencement of the said section 6 and any such proceedings shall be dealt with as if the said section 6 had not come into force.]

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Added by Punjab Act 16 of 1981.

— 16 —

The Punjab New Mandi Townships (Development and Regulation) Rules, 1960

1. **Short title.**—These rules may be called the Punjab New Mandi Townships (Development and Regulation) Rules, 1960.

2. **Definitions.**—In these rules, unless the context otherwise requires,—

(a) “Act” means the Punjab New Mandi Townships (Development and Regulation) Act, 1960 ;

(b) “Form” means a form appended to these rules ; and

(c) “Obnoxious trade” shall be deemed to be carried on in any site or a building, if the site or building is used for any of the following purposes :—

(i) melting tallow, dressing raw hides, boiling bones, offal or blood ;

(ii) as a soap house, oil boiling house, dyeing house or tannery ;

(iii) as a brick field, brick kiln, charcoal-kiln, pottery or lime kiln ;

(iv) as any other manufactory, engine house, store-house or place or business from which offensive or unwholesome smells, gases, noises, or smoke arise ;

(v) as a yard or depot for trade in unslacked lime, hay, straw, thatchid grass, wood, charcoal or coal or other dangerously inflammable material ;

(vi) as a store-house for any explosive or for petroleum or any inflammable oil or spirit.

3. **Mode of selling lands and buildings.** [Sections 3 (2) and 25 (a).—

(1) The lands and buildings in New Mandi Townships shall be sold by the State Government by public auction or allotment. In the case of sale by public auction, the sale price shall be reserve price or the price offered by the highest bidder whichever is higher. In the case of sale by allotment, the sale price shall be the reserve price, which shall be determined by the State Government from time to time keeping in view the market price thereof.

(2) Before holding an auction the Administrator shall, at least fifteen days before the date of auction, publish a notice in Form ‘A’.

(3) The notice in Form ‘A’ shall be published by affixing a copy thereof at the office of the Administrator and at such conspicuous places in the locality, in which the property to be sold is situated as the Administrator may think fit. The notice shall also be published in one of the newspapers having circulation in that locality.

Published vide Punjab Government Notification No. 2097-D(M)-60/2673, dated 22nd September, 1960.

Vide GSR 40-PA-2/60/S-25/Amnd (3)/1, dated 10th June, 1971.

(4) The final bid which is accepted by the Administrator shall be subject to the approval of the State Government.

4. **Terms and conditions of auction.** *Section 25 (a).*—The sale of lands or buildings put to auction shall be subject to the terms and conditions given in Form 'A' and the provisions of the Act and these rules.

5. **Order of allotment.** *Section 3 (2).*—(1) The Administrator shall, after a bid is sanctioned by the State Government, issue an order of allotment in favour of the transferee.

(2) The transferee shall execute a deed of conveyance in Form 'B' within a period of six weeks of the date of issue of the order of allotment.

6. **Additional conditions of sale of cinema sites.**—*Sections 3(2) and 25 (e).*—(1) The erection of building on the cinema site shall conform to the provisions of the Punjab Cinemas (Regulation) Act, 1952, and the rules framed thereunder.

(2) [—]

7. **The manner in which consideration money for transfer shall be paid.**—*Section 25 (b).*—(1) Twenty-five per cent of the amount of bid accepted by the auctioning officer shall be paid on the spot by the auction purchaser in cash or by means of Demand Draft [x x x x x x] payable to the Administrator and drawn at any Scheduled Bank situated at a station where a branch of the State Bank of India is functioning.

(2) The balance of the sale price shall be paid alongwith interest at the rate of ¹²[6] per cent, per annum in—

(a) six equated half-yearly instalments in the case of commercial plots ; and

(b) three equated annual instalments in the case of residential plots.

(3) The first instalment shall be payable six months after the date of issue of the order of allotment in the case of commercial plots and one year in the case of residential plots.

(4) Interest shall accrue from the date of issue of the order of allotment but no interest shall be payable if the balance is paid within a period of thirty days of the date of receipt of the order of allotment by the transferee.

(5) Each instalment shall be remitted by transferee to the Administrator in manner provided in sub-rule (1).

8. **Service of notice.**—*Sections 12 and 25 (g).*—In case an instalment is not paid by the transferee by the tenth of the month following the month in which it falls due a notice in Form C shall be served on the transferee calling upon him to pay the instalment within a month together with a penalty which may extend to ten per cent of the instalment payable. If the payment is not made within the said period or such extended period as may be allowed by the Administrator, the Administrator may, without prejudice to any other remedy available under the Act or these rules, proceed to have the same recovered as an arrear of land revenue.

¹Omitted vide GSR 106/PA-2/60/S-25/Amd(5)/80, dated 9th, Dec. 1980.

²Omitted vide GSR 169/PA-2/60/S-25/Amd (2)/65, dated 31st July, 1965.

³Sub. by GSR 97/PA-2/60/S-25 Amd(4)/72, dated 21st November, 1972.

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9. Manner of service of notice.—*Section 2 (g).*—The notice in Form C may be served on an individual or a group of individuals either personally or by affixing it to a prominent part of the land or building or by the beat of drum [or by registered post].

10. The form and manner in which appeals and applications under the Act may be filed and the Court fees leviable thereon.—*Section 25 (b).*—(1) Every appeal under sub-section (1) of section 15 shall be preferred in the form of memorandum signed by the appellant or his pleader and shall be accompanied by a copy of the order appealed against.

(2) The memorandum shall set forth, concisely and under distinct heads, the grounds of objection to the order appealed against without any argument of narrative and such grounds shall be numbered consecutively.

(3) An application for revision under sub-section (3) of section 15 shall clearly specify the grounds on which the petitioner seeks to invoke the power of revision.

(4) The memorandum of appeal shall bear a Court fee stamps of Rs. 1.25 NP. and an application for revision a Court fee stamps of Rs. 2.65 NP.

11. Delivery of possession.—*Section 25(a).*—The possession of the land or building sold under these rules shall be given after the date of issue of the order of allotment.

12. Use of site.—*Section 25 (a).*—The transferee shall not use the site for a purpose other than that for which it has been sold to him and shall keep the property in good repair.

13. Time within which the building is to be erected.—*Section 25 (a).*—The transferee shall complete the building within two years from the date of the issue of the order of allotment in accordance with the conditions prescribed by the State Government in this behalf, if any. This time limit may be extended by the Administrator for a period not exceeding six months if he is satisfied that the failure to complete the building within the said period was due to reasons beyond the control of the transferee. Beyond that sanction the State Government shall be required on an application for extension of time.

14. Fragmentation.—*Section 25 (n).*—No fragmentation of allots shall be made except with the previous permission in writing of the Administrator.

15. Plans.—*Section 25 (a).*—Plans of construction shall be first approved from the Administrator or the Extra Assistant Colonisation Officer, Hissar.

16. Prohibition of obnoxious trade.—*Section 25 (a).*—No obnoxious trade shall be carried on in or on any site or any building erected on a site except with the previous permission in writing of the Administrator.

FORM A
(See Rule 4)

**Form of notice and conditions of Sale by Public Auction of building sites/
buildings in the New Mandi Township**

(a) Notice

Sale of -----

Description of the property, place and time of sale.—Notice is hereby given that the undersigned invites officers at public auction for the purchase of ----- being the property of the State Government.

(Here should be inserted the brief description of the property to be auctioned showing also where it is situated).

The auction will be held by the Administrator, New Mandi Township, Jullundur, and will commence at ----- A. M. on the -----

Plans showing full details of the property to be sold will be open to inspection on any working day during office hours at the office of the Administrator, New Mandi Township, Jullundur and the Extra Assistant Colonization Officer, Hissar, where from further information can also be obtained and the plans, etc. can be obtained on payment.

(b) Conditions of sale

1. **Bidding.**—Offers will be received subject to a reserve price and to the right of the State Government through any of its agents or the auctioneer to bid up to or beyond such reserve price and to withdraw the property without declaring such reserve price. The Administrator shall have the right to reject any bid without assigning any reason or withdraw any property from auction.

2. **Right of Government to accept or reject a bid.**—Subject as aforesaid, the highest bid received by the auctioneer will be communicated to Government which may either accept or reject it without assigning any reason but the auctioneer may refuse to receive any bid.

3. **Levelling of uneven sites.** Government will not be responsible for levelling uneven sites.

4. **Settlement of disputes.**—If any dispute arises respecting a bid the property shall be put up again for auction at last undisputed bid.

5. **Auction in lot or lots.**—The property may be put up for auction in one lot or in such lots as the Administrator may decide.

6. **Initial Deposit.**—Immediately after the close of the bidding the person making the bid, which is accepted by the auctioneer, shall pay to the Administrator as agent of the State Government a deposit of 25 per cent towards payment of his Purchase money in case his bid should be finally accepted by Government.

7. **Memorandum of offer.**—He shall also sign a memorandum of offer in the form annexed hereto.

8. **Identity and errors of its description.**—Bids will be invited by reference to Municipal street numbers or by reference to the number shown on the plan at the Administrator's office. The description of the several lots

given therein is believed and shall be deemed to be correct and if any error shall be found therein the same shall not annul the sale nor shall any compensation be given in respect thereof.

9. **Terms and conditions of sale.**—The sale will be subject to the reservation in favour of the State Government which are set forth in the Conveyance deed given in Form B and the purchaser will be bound by the covenants contained therein. In particular the purchaser will be required to enter into a covenant not to use the property for any purpose other than that for which it is sold and not to convert the residential, commercial and industrial sites, one into the other and to keep the property in good repair.

10. **Payment of taxes, cesses, etc.**—The transferee shall pay all general and local taxes and cesses for the time being assessed on the site by a competent authority.

11. **Fragmentation.**—No fragmentation of any building site shall be allowed.

12. **Delivery of possession.**—The possession of the site shall be given to the transferee after the date of issue of the order of allotment.

13. **Restriction on transfer.**—Until the full price of the site has been paid, no transfer of any right or title or any interest in it shall be permitted without the previous sanction of the Administrator. The transferee, however, shall be permitted to let on a monthly basis a part or whole of the building erected on the site.

14. **Time within which a building is to be erected.**—The transferee shall complete the building within two years from the date of the issue of the allotment order in accordance with the conditions prescribed by the State Government in this behalf, if any. This time limit may be extended for a period not exceeding six months by the Administrator if he is satisfied that the failure to complete the building within the said period was due to reason beyond the control of the transferee. Beyond that sanction of the State Government shall be required on an application for extension of time.

15. **How to make payments.**—All payments shall be made in cash or by means of a Demand Draft payable to the Administrator and drawn on any scheduled Bank situated at a station where a Branch of the State Bank of India is functioning.

16. **Completion of the sale.**—If the bid is accepted by Government, the sale shall be completed within six weeks from the date of issue of the allotment order. The transferee shall obtain deed of conveyance in Form B from the Administrator's Office and shall at least seven days before the date fixed for completion of sale, return the deed to the Administrator's Office duly stamped at his own expense and ready for execution.

17. **Payment of balances.**—Within the time fixed for the payment of the balance of the sale price, the transferee shall pay the balance and interest thereon in the manner specified in clause No. 15 above.

18. **Forfeiture.**—Should any transferee fail to observe or comply with any of the foregoing conditions, his deposit shall be forfeited to the State Government which may have the property resold by public auction. Any deficiency of price which may result on such resale shall be made good and paid by the defaulting purchaser.

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19. - Purchase by more persons than one. - No bid will be accepted in the name of a firm or in any name other than that of a single living person, and the names of all the persons making the offer are given without any indication of shares and the person making the bid produces a Power of Attorney authorising him to bid on their behalf. No bid will be accepted if the name of more than seven persons; and if the bid is to be made in the name of an association, the bidder shall produce the necessary documents to show that the association has been duly registered and that he has the authority to bid and enter into an agreement of sale on its behalf.

20. Approval of construction plans - Plans of construction would be approved from the Administrator, New Mandi Township, Jullundur. Extra Assistant Colonization Officer, Hissar.

MEMORANDUM OF OFFER
PARTICULARS OF PLOTS SOLD

21.
Land Acquisition
ANDIGARH.

I, _____, son of _____, tehsil _____, district _____, do hereby acknowledge that I have this day made an offer for the purchase of the property described in the Schedule below, subject to the provisions of the New Mandi Townships Act, 1960, and rules framed thereunder and the conditions contained in Form 'A' at the price of _____ and have paid to the Administrator _____ Rupees by way of deposit in part and I hereby agree to pay the balance along with interest and to complete the purchase in accordance with the aforesaid conditions, if my offer is accepted by Government.

In witness my hand this _____ day of _____

(Signature of purchaser)

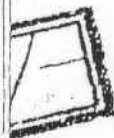
Base money _____ Rs.
Sit paid _____ Rs.
Ce due _____ Rs.

Certificate

_____, Administrator hereby certify that _____, son of _____, village _____, tehsil _____, district _____, has made the highest bid of Rs. _____ on _____ day of _____ for the _____ property and has deposited the amount indicated above in _____ memorandum of offer.

(Signature of Administrator,
New Mandi Townships)

RS



The Punjab New Mandi Townships (Development and Regulation) Rules, 1960

21

FORM B

(See rule 5)

Deed of conveyance of land/building in the _____ sold by auction
Shop

Residential site

to be used as a site for

Shop and Residential House Combined

Factory

This indenture made the _____ day of _____ between the Governor of Punjab (hereinafter called the vendor) of the one part and _____ son of _____ resident of _____ in the district of _____ in the Punjab (hereinafter called the vendee) of the other part;

Whereas the land/building hereinafter described and intended to be hereby conveyed was owned by the vendor in full proprietary rights and the same then described as lot No. _____ (hereinafter referred to as the said property) was put up for sale by the public auction by the vendor at _____ on the _____ day of _____;

And whereas the vendee bid at the said auction the sum of Rs. _____ for the said property and paid to the vendor the sum of Rs. _____ by way of deposit towards payment of twenty-five per cent of the purchase money pursuant to a condition of sale in that behalf;

And whereas the sale of the aforesaid property in favour of the vendee has been sanctioned by the Government;

And whereas on the said _____ day of _____ 19____, the vendee had signed a Memorandum of offer whereby he agreed to pay the vendor the remainder or balance of the purchase money along with interest and to complete the purchase according to the said conditions of sale and to comply with the said conditions of sale and each and every one of them.

And whereas the said conditions of sale provide among other things for the execution of a deed of conveyance between the parties within a period of six weeks of the date of issue of the orders of allotment;

And whereas the order of allotment was issued on _____;

Now, therefore, this indenture witnesseth that in pursuance of the said agreement and for the purposes of carrying into effect the said sale and in consideration of the covenants of the vendee hereinafter contained and of the said sum of Rs. _____ paid by the vendee as hereinafter before mentioned (the receipt of which the vendor hereby acknowledges) the vendor as beneficial owner hereby grants and conveys to the vendee.

All that aforesaid property described in the Schedule hereto attached and more particularly delineated in the plans filed in the office of the Administrator signed by the Administrator aforesaid and dated the day _____

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To have and to hold the same unto and to the use of the vendee in full proprietary right for ever subject nevertheless to the provisions of the Punjab New Mandi Townships (Development and Regulation) Act, 1960, the rules framed thereunder and the exceptions, reservations, conditions and covenants hereinafter contained and each of them, that is to say :-

(1) The vendor reserves to himself all mines and minerals whatever in, under or upon the said property with all such rights and powers as may be necessary or expedient for the purpose of searching for, finding, obtaining, removing and enjoying, the same at all such times and in such manner as the vendor shall think fit, with powers to carry out surface or underground working and to sink pits, erect buildings, construct lines, and generally to appropriate and use the surface of the said lands for the purpose of doing all such things, as may be convenient or necessary for the full enjoyment of the exceptions and reservations herebefore contained :

Provided that the vendee shall be entitled to receive from the vendor compensation for the payment for the occupation by it of the surface and for the damage done to the surface or to buildings on the plot by such works or workings letting down as may be agreed upon between the vendor and the vendee failing such agreement as shall be ascertained by reference to arbitration.

(2) The property is sold subject to the payment of land revenue.

(3) The vendee shall pay all general and local taxes, rates or cesses at the time being imposed or assessed on the said property by competent authority.

(4) The vendee shall complete to the satisfaction of the Administrator
Shop

the construction of the said Residential site

Shop and residential house combined

Factory

within two years of the date of the issue of allotment order; provided that the time under this clause may be extended by the administrator in case the failure to complete the building by the stipulated date was due to reasons beyond the control of the vendee.

(5) The vendee shall at all times keep and maintain the said
Shop

Residential site

including the upper storey or storeys
Shop and residential house combined
Factory

in any, in a proper state of repair and to the satisfaction of the Administrator.

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Regulation) Rules, 1960

(6) The vendee shall not dig or cause to be dug any pit upon the said property.

Shop

Residential house

(7) The vendee shall not use the said Shop and residential house combined

Factory

to be erected on the said property as aforesaid for any purpose inconsistent with that for which the said property is hereby granted.

Shop

Residential site

that is for any purpose other than that of Shop and residential house combined

Factory

or permit the same to be used.

(8) The vendee shall pay the balance amounting to Rs. --- along with interest calculated at the rate of 5 per cent per annum from the date of issue of the order of allotment in --- half-yearly/yearly instalment, the first instalment being payable on or before ---.

(9) The vendor may by his officers and servants and at all reasonable times; and in a reasonable manner after 24 hours notice in writing enter and upon any part of the said property or building erected thereon for the purpose of ascertaining that the vendee has duly performed and observed the covenants under these presents.

(10) The vendor shall have full rights, power and authority at all times to do all acts and things which may be necessary and/or expedient for the purpose of enforcing compliance with all or any of the terms, conditions and to recovery from the vendee as a first charge upon the said property and building thereon the cost of doing all or any such acts and things and costs incurred in connection therewith or in any way relating thereto.

(11) In the event of breach or non-observance by the vendee or his legal representative of any of the covenants herein on his part to be observed then, and in any such case, it shall be lawful for the vendor, notwithstanding the waiver of any previous cause or right for re-entry, to enter into and upon the said property or building thereon or any part thereof in the name of the whole, and to repossess, retain and enjoy the same as of his form estate and the vendee shall not be entitled to a refund of the purchase money or any part thereof or to any compensation whatsoever on account of such resumption.

12 In the event of any dispute or difference at any time arising between the vendor and the vendee as to the true intent and meaning of these presents and of each and every provision thereof the property and rights hereby

✓
(2)
MB
(9)

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or any of them or in any manner incidental or consequential of difference shall be referred to the Secretary Department whose decision thereon shall be final and binding on the parties thereto.

13) If and so long as the vendee shall fully perform and comply with each and all of the conditions herein made and provided but not otherwise the vendor will permit the vendee in full and peaceful enjoyment of the rights and privileges herein and hereby conveyed and assured.

And it is hereby agreed and declared that unless different meaning shall appear from the context:—

(a) the expression 'vendor' used in these presents shall include in addition to the State Government, the successors and assignees of the Government of Punjab and in relation to any matter or thing contained in or arising out of these presents every person duly authorised to act for or to represent the Government of Punjab in respect of such matter or thing;

(b) the expression 'vendee' used in these presents shall include, in addition to the said — his lawful heirs, successors, representatives, assigns, transferees, lessors and any person or persons in occupation of the said land and building erected thereon.

In witness whereof the parties hereto have hereunto respectively signed their names at the places and on the dates hereinafter specified.

Witnessed by
and on behalf of the Governor of the Punjab

Administrator, New Townships, Mullandir
Vendee

this day of 19 on the
signed by the said at
day of 19

in the presence of witnesses

1. Name
Residence and occupation
2. Name
Residence and occupation

Witness

Witness
Schedule

[Certified that vendee and the witnesses have signed the document in my presence and their signatures are hereby attested.]

(Signatures of M.P./M.L.A./M.L.C./
Municipal Commissioner/Sarpanch/
Magistrate/Revenue Officer not
below the rank of Naib-Tehsildar)

Note.—The above certificate will be essential where the deed is not signed by the vendee and his witnesses in the presence of the Administrator]

Added by Pb. Govt. Agriculture Department Noti No. GSR 176/P.A.-2/60/S/25/Amul. (I) 64, dated 11-6-64

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2-1] The Punjab New Mandi Township (Dev. & Reg.) Act, 1960

A wooden shed of the dimensions 10'x18' and which is roofed by tin sheets would fall within the definition of building though it is mounted on wheels and it is permitted to move from one part of the site on which it stood to another. Such a place when used for sleeping purposes at night would fall within the term building. *Nandu Mal v. Municipal Committee*, AIR 1925 All 252.

A cow shed is also a building. *Mardana Rao v. MC Nagpur*, AIR 1926 Nagpur 281.

A small wooden almshouse would not fall within the definition of the term building. It was observed that the expression building includes any shop but carrying on of trade is not decisive of every place of building being a building or not. Whether a particular place is covered by the definition of term building or not would depend on the nature of the business carried on therein. Under the circumstances it was held that almshouse would not constitute a building. *Hira Lal v. Municipal Committee*, 1267 (69) PLR 74 (Allahabad).

In *Emperor v. Hassan Bhat*, AIR 1924 Bombay 94 a wire fence 6 feet in height and consisting of wooden plank attached to posts embedded in earth on the boundary of the property was held not to be a building. A space enclosed by canvas is outside the scope of definition of building. *Kantilal Har v. Municipal Board of Allahabad*, 23 All. 199.

Each house has to be taken as a separate building. Tax has to be levied separately. *Bhakra Beas Management Board v. State of Punjab*, 1986 (1) All India Law Reports and Statutes 686.

Compound wall.—A compound wall constructed on a ground which would be the compound of a projected building amounts to a part of building. *Improvement Trust of Varanasi v. Dr. M. A. Niamani*, 1979 All LJ 897. However in *Lalit Narain v. State*, 1957 All LJ 711, it was held that a compound wall which is entirely detached from a house is not a building or part of building.

A compound wall comes within the definition of the term building. *Emperor v. Prabhau*, 63 Indian Cases 158.

Compound wall is a building. While interpreting Madras District Municipalities Act, 1920 the compound wall of less than 8 feet abutting on a public road was held to be not a building and it was accordingly held that it could not be demolished if it was built without permission. *Vishakhapatnam Municipal Council v. Kamla Devi*, 1972 (1) And. WR 332.

SECTION 3

Power of State Government to declare New Mandi Township and to transfer land and building therein.—(1) The State Government may, from time to time, by notification in the official gazette, declare any area to be a new mandi township for the purposes of this Act to be known by such name as may be specified in the notification.

(2) [Subject to the provisions of this section], the State Government may sell, lease or otherwise transfer, by auction, allotment or otherwise, any land or building belonging to or vested in the State Government in any new mandi township on such terms and conditions as it may, subject to any rules that may be made under this Act, deem fit to impose.

See Punjab Act 16 of 1981.

(3) The consideration money for any transfer under sub-section (2) shall be paid to the State Government in such manner, in such instalments and at such rate of interest as may be prescribed.

(4) Notwithstanding anything contained in any other law, for the time being in force, until the entire consideration money, together with interest or any other amount, if any, due to the State Government on account of the transfer of any site or building, or both, under sub-section (2) is paid, such site or building, or both as the case may be, shall continue to belong to the State Government.

4. *Bar to erection or alteration of buildings in contravention of building rules.*—(1) No person shall erect or re-erect or occupy wholly or partly any building or use or develop any site or building in contravention of any rules made under sub-section (2) and without the previous permission in writing of the Administrator.

(2) The State Government shall, by notification in the official gazette, make rules to regulate the erection or re-erection of buildings and use of sites, and such rules may provide for all or any of the following matters:

(a) notice to build and procedure for submission of building applications with building and site plans;

(b) use of site and the type and character of building and the number of self-contained units that may be erected on any site;

(c) extent of site coverage and space about buildings and the prescription of a building line;

(d) the minimum dimensions and superhead area required for various parts of the building designed for different purposes and the minimum provision of doors and windows for securing ventilation and circulation of air;

(e) the maximum height of any building and the total number and height of storeys in a building;

(f) the means to be provided for ingress and egress to any building for prevention of fire;

(g) the extent of architectural control on the various units of the building and the portions of such architectural units, including compulsory building line along which, and compulsory height up to which building shall be completed within a specified and reasonable time;

(h) the specification of materials and dimensions for any building to ensure structural stability;

(i) the materials and methods of construction for drains and sewers and for the provision and use of connection between private and public drains and sewers, and the procedure for submission of plans;

(j) Supervisors and Architects for design and erection of any buildings and the qualifications which such persons shall possess;

(k) notice and certificate of completion of buildings or parts thereof;

(l) any other matters for the proper use and development of sites and the use, alteration and erection of buildings thereon.

5. *Administrator's powers to sanction or refuse erection of buildings and presumption of sanction.*—(1) The Administrator shall refuse to sanction

¹See Punjab Act 16 of 1981.

and Acquisition
JGARH